

Court No. - 21

Case :- WRIT - C No. - 11979 of 2022

Petitioner :- Madan Kumar Vishkarma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- A.K. Maurya I

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dinesh Pathak, J.

Shri Udit Chandra, learned counsel for respondent Corporation, seeks ten days' time to obtain instructions in the matter.

Put up as fresh on 16.05.2022.

Order Date :- 28.4.2022

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(Dinesh Pathak, J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

The principal prayer made in the instant petition is for quashing an electricity bill issued by the electricity department (Annexure-2).

Learned counsel for the respondents has obtained instructions in the matter and on basis thereof he submits that the electricity bill in question has rightly been issued.

In our opinion, the petitioner has alternative remedy of questioning the electricity bill by invoking the mechanism provided under Paragraph 6.5 of the U.P. Electricity Supply Code, 2005.

Therefore, we dispose of the instant petition with liberty to the petitioner to avail the said remedy and in which event, the electricity department shall deal with the objection in accordance with law.

(Dr. Y.K. Srivastava, J.) (Manoj Kumar Gupta, J.)

Order Date :- 5.7.2022

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